

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Motion to Stay Mandate — Denial Path

Filed July 2, 2026

The City of Norvale moves under Federal Rule of Appellate Procedure 41(d) and Local Rule 41 to stay issuance of the mandate while the City prepares a petition for a writ of certiorari. The Court entered judgment on June 18, 2026, affirming the Guild's entitlement to preliminary protection while directing a limited remand for a more specific injunction and an express security determination. The City does not seek panel rehearing or rehearing en banc. It instead asks that the mandate remain withheld during the period allowed for seeking Supreme Court review.

This motion is timely on the final day of the ordinary fourteen-day rehearing period. Under Rule 41(b), a timely mandate-stay motion affects the issuance calculation while the motion is pending, unless the Court orders otherwise. If the request is denied, the rule measures issuance from the later applicable event rather than treating the denial itself as a mandate. If the request is granted, Rule 41(d) controls the authorized period. The City asks the Court to decide the request on the papers and to preserve the current appellate posture until that decision is entered.

Question Proposed for Supreme Court Review

The contemplated petition would ask whether a content-neutral municipal permit rule governing compensated speakers may be preliminarily displaced when the applicant has not established viewpoint discrimination and when the City's evidence identifies advance crowd, traffic, emergency-access, sanitation, and staffing interests. The City would contend that the panel required proof approaching least-restrictive-means review by emphasizing possible alternatives to the paid-speaker trigger and the fixed advance roster.

The June 18 opinion acknowledged that planned presentations may concentrate listeners, that every fair date presents different operating conditions, and that advance coordination serves legitimate interests. It nevertheless concluded that schedule, format, equipment, and expected attendance provide a closer fit than compensation, identity, topic, and a per-speaker assessment. According to the City, that reasoning permits a court to replace an administrable neutral indicator whenever a challenger identifies another plausible measure, even though narrow tailoring does not demand the least restrictive means.

The proposed question concerns the legal threshold governing preliminary intervention, not a request for final judgment on the Guild's claims. The complaint remains pending, and the district court may consider a fuller evidentiary record. The City seeks review of the standard applied to the current injunction and of the remedy that retained protection after the panel found defects under Federal Rule of Civil Procedure 65(c) and (d).

Claimed Substantial Question

The City recognizes that Rule 41 requires more than an intention to petition. It must identify a substantial question rather than repeat disagreement with the result. The proposed petition would argue that the interaction among content neutrality, evidentiary tailoring, and preliminary relief warrants review because the panel accepted the City's objectives and disclaimed any finding of censorship, yet sustained displacement of the enacted trigger before final merits development.

The City would also challenge continuation of the existing injunction after the panel found that its operative language did not adequately specify the acts restrained and that the district court had not exercised its security discretion expressly. In the City's view, leaving that order in force during correction allows a concededly deficient command to govern municipal employees. The City would ask whether the appropriate response to those defects is vacatur or temporary dissolution rather than preservation until a superseding order enters.

Those issues arise from an interlocutory appeal and a developed hearing record. The City acknowledges that the decision applies settled principles to a particular ordinance, that the panel limited its ruling to preliminary entitlement, and that the district court remains free to address later evidence. It nevertheless submits that the governing questions are sufficiently important to permit consideration of a petition before appellate jurisdiction ends. This motion does not represent that review will be granted or that the City will prevail.

Good Cause Asserted

Good cause exists, the City submits, because issuance would return the matter for immediate entry of a superseding injunction while the City is deciding whether to seek review of the legal standard that requires that relief. The Guild has four announced 2026 fairs remaining after the June date. Municipal employees must coordinate each event, distinguish permissible logistical inquiries from restrained speaker-specific demands, and make written decisions under short planning intervals. A later change in governing law could not recreate those administrative choices.

The requested stay would not alter the protection presently governing the parties. The June 18 judgment states that the January 23 injunction remains effective until a compliant replacement enters. Withholding the mandate would therefore preserve, rather than dissolve, the current restraint. The City will continue to respect reservations, capacity, emergency access, traffic, sanitation, layout, and materially changed conditions as described in the existing order. The Guild remains able to hold its free literary programs and add authors under that protection.

The City does not rest good cause on lost permit fees. Its concern is the institutional burden of implementing a corrective remand before the availability of further review is determined. It also acknowledges the Guild's interest in a definite and intelligible command. Prompt resolution of this motion, followed by the issuance timing Rule 41 prescribes if relief is denied, would protect that interest without treating expedition as a substitute for the required showing.

Requested Duration and Compliance

The City asks that the mandate be stayed until the time to file a certiorari petition expires and, if a petition is filed with timely written notice to the circuit clerk, until the Supreme Court's final disposition. The City understands that Rule 41(d)(2) ordinarily limits a stay to no more than ninety days unless an authorized extension or timely petition supports continuation. It will notify the clerk promptly of any extension request, filing, denial, or decision not to proceed.

No bond is necessary, in the City's view, because withholding the mandate would leave the existing interim protection in place and would not authorize collection of the challenged charges. If the Court considers security appropriate, the City requests an opportunity to address its amount and terms. The motion has been served electronically on counsel for the Guild. Guild counsel was informed before filing and opposes a stay, principally because the proposed issues are fact-bound and further delay would postpone a clear replacement order.

The City respectfully requests an order staying the mandate under Rule 41(d). The request concerns the timing and effect of the mandate only. It does not seek to revise the June 18 opinion, reopen the appellate merits, stay the district proceedings through a separate injunction, or obtain a ruling that a petition will be accepted. Municipal Appellate Counsel submits this motion for the City of Norvale on July 2, 2026.